

contest the tentative ruling sustaining Defendants' demurrer pursuant to Court rules, and why he failed to appear at the hearing on the demurrer. Such lack of diligence cannot be excused, given Counsel's significant legal experience. Moreover, this lack of diligence cannot support a Motion for Reconsideration.

As noted in the Court's order sustaining the demurrer, California Rules of Court, Rule 8.54(c) states, "A failure to oppose a motion may be deemed a consent to the granting of the motion."; see *Cravens v. State Bd. of Equalization* (1997) 52 Cal. App. 4th 253, 257; *Gwaduri v. I.N.S.* (9th Cir. 2004) 362 F.3d 1144, 1146 [Where a party fails to file timely opposition to a motion, it is "well-within" the court's discretion to determine that such failure is "tantamount to a concession that its position in the litigation was not substantially justified."] (citing *Weil v. Seltzer*, 873 F.2d 1453, 1459 (D.C. Cir. 1989) [holding that a party who fails to file an opposition to a motion is deemed to have waived opposition and may not be heard to complain.]; see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue.]; see also *Badie v. Bank of America* (1998) 67 Cal.App.4th 779, 784–785 [failure to support a point with reasoned argument and citations to relevant authority constitutes waiver].) Plaintiff did not even attempt to oppose Defendants' Demurrer to Plaintiff's First Amended Complaint and failed to explain, in a declaration, the reasons for this fatal inaction.

Ruling

Plaintiff's Motion for Reconsideration is **denied**. Defendants' counsel is ordered to prepare and e-file a proposed order that conforms to this ruling. The Court notes that Defendants' counsel failed to prepare a proposed order sustaining the demurrer following the September 3, 2025 hearing. To avoid the issuance of an order to show cause, Defendants' counsel is ordered to comply with this court's ruling for both the September 3, 2025 ruling and this order.

7. 9:00 AM CASE NUMBER: C24-02453
CASE NAME: JOSHUA ROCHA VS. CHRISTOPHER CHILIMIDOS
***HEARING ON MINOR'S COMPROMISE RE: ISABELLA ROCHA**
FILED BY: ROCHA, JOSHUA
TENTATIVE RULING:

Summary

Petitioner Aura Rocha's Petition for Approval of Compromise of Minor Isabella Rocha's ("Minor") Claim filed on November 7, 2025, is **granted**, as set forth below. No appearance is required at the January 7, 2026 hearing.

Background

On November 7, 2025, Petitioner Aura Rocha, parent and guardian *ad litem* for her daughter, Isabella Rocha (DOB 8/14/2019), filed the instant Petition through Petitioner Joshua Rocha's counsel Brian Larsen, Esq., to compromise the claim that Minor had against Defendant Christopher Chilmidos related to an accident that occurred on March 30, 2024 in Walnut Creek, CA. In that accident, Minor sustained injuries including a bump on head, laceration on neck and bruising on groin area. Petitioner represents that Minor has received treatment at John Muir Hospital and UCSF Benioff Children's Hospital, including imaging and chiropractic treatment. She has fully recovered and there are no

permanent injuries.

The Defendant offered settlement in the amount of \$30,000 to Minor, of which \$19,483.11 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deduction of \$10,516.89 represents a negotiated deduction from the settlement, is used to satisfy any liens for medical expenses and to pay for attorney's fees and costs incurred. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

After careful examination of the Petition and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is **granted**. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on November 7, 2025. No appearance is required at the haring of this Petition.

8. 9:00 AM CASE NUMBER: C25-00116

CASE NAME: RALPH DEAN VS. CHRISTOPHER BEITE

HEARING ON SUMMARY MOTION

FILED BY: DEAN, RALPH

TENTATIVE RULING:

Before the Court is Plaintiff Ralph Dean ("Plaintiff" or "Dean")'s motion for summary adjudication. The Motion relates to Plaintiff's claim for Negligence and Defendant Christopher Beite ("Defendant" or "Beite")'s second affirmative defense of Comparative Fault.

Plaintiff moves for summary adjudication on the grounds that "there is no defense with respect to Plaintiff's claim for Negligence and that Defendant's Second Affirmative Defense of Comparative Fault has no merit." (Notice at 1:9-10.)

For the following reasons, the motion is **denied**.

Brief Factual Allegations

On September 1, 2024 at approximately 10:21 AM, Plaintiff was walking in the street immediately in front of the property located at 5370 Fernbank Drive, Concord, California, 94521. (UMF 1.) The property was owned by Defendant. (UMF 2.) As Plaintiff passed the Premises, an unleashed dog raced out from the side of the Premises, rushing towards Plaintiff and growling, a second dog following seconds later. The dogs approached Plaintiff in a non-friendly manner. The two dogs were owned by Defendant. (UMF 3.) The dogs had been in the backyard of the Premises but were able to escape and go onto the street as the gate was not secured. (UMF 5.)

As the dogs approached, Plaintiff attempted to back up and move away from the dogs, however they continued to growl and move towards and around him, leaving him unable to get away from the dogs. As Plaintiff continued to attempt to move away from the dogs, one dog rapidly ran around his body, racing in front of him. (UMF 9.) The dog's sudden appearance and continued aggression startled Plaintiff, who attempted to stop and avoid making contact with the dog. (UMF 10.) As Plaintiff attempted to back up and get away from the dogs, the dogs continued to advance. Plaintiff ultimately lost his balance and fell to the ground. (UMF 11.) Plaintiff suffered personal injuries as a result of the